

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

JAIL PETITION NO.338 AND CRIMINAL PETITION NO.519-L OF 2018

(On appeal against the judgment dated 09.04.2018, passed by the Lahore High Court, Lahore in Criminal Appeal No.844 of 2015 and Murder Reference No.341 of 2015)

Muhammad Tariq @ Billa
(in JP No.338/2018)

Sabir Ali
(in Criminal Petition No.519-L/2018)

...Petitioner(s)

VERSUS

The State
(in JP No.338/2018)

Muhamma Tariq
(in Criminal Petition No.519-L/2018)

...Respondent(s)

For the Petitioner(s): Mr. Shah Nawaz Khan Niazi, ASC
(in JP No.338/2018)

Mr. Shahid Qayyum Ch. ASC
(in Criminal Petition No.519-L/2018)

For the State : Mr. Hamayun Aslam, DPG, Punjab
(in both cases)

Date of hearing: 11.02.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- According to the First Information Report No. 258 dated 13.12.2013 (Exh.PA/1), registered under section 302 and 34 PPC at Police Station Kot Nainan, District Narowal, on the written application (Exh.PA) of informant Sabir Ali (PW-1), on 13.12.2013 at about 8:00 a.m., his son Zeshan Ali while returning from the house of his uncle when reached the place of occurrence

situated in village Akhlaaspur, the petitioner Muhammad Tariq alias Billa along with co-accused Muhammad Rafique alias Rafi and Muhammad Abbas, all armed with *churri*, already present there caught hold of him. Co-accused Muhammad Rafique alias Rafi gave him a *churri* blow on the left side of his chest while the petitioner Muhammad Tariq alias Billa gave him *churri* blow on the lower abdomen. Similarly, co-accused Muhammad Abbas inflicted a *churri* blow on his chest near the neck, as a result, he sustained injuries, fell to the ground and died on the spot. Besides the informant, the occurrence was allegedly witnessed by Muhammad Saeed, Muhammad Ishaq and Kaneez Bibi. After the commission of the offence, the accused fled from the scene. The motive set forth in the FIR was that an altercation had taken place between the accused and the deceased on the evening of 12.12.2013. On the report of the informant Sabir Ali, the aforesaid FIR was registered. Subsequently, being dissatisfied with the police investigation, the complainant instituted a private complaint on the same allegation before the learned Additional Sessions Judge, Shakargarh ("Trial Court").

2. Upon conclusion of the trial, the learned Trial Court, vide judgment dated 22.04.2015, convicted the petitioner under Section 302(b), PPC and sentenced him to death, with a direction to pay compensation of Rs. 500,000/- to the legal heirs of the deceased under Section 544-A, Cr.P.C., and in default thereof to undergo six months' simple imprisonment. Through the same judgment, however, co-accused Muhammad Rafique alias Rafi and Muhammad Abbas were acquitted by extending to them the benefit of doubt.

3. The Lahore High Court, Lahore ("High Court"), while dismissing the appeal of the petitioner-convict, maintained his conviction under Section 302(b), PPC; however, vide judgment dated 09.04.2018 ("impugned judgment"), it commuted the sentence of death to imprisonment for life. Consequently, Murder Reference No. 341 of 2015, sent by the Trial Court for confirmation of the death sentence, was answered in the negative.

4. Through Jail Petition No. 338 of 2015, the petitioner-convict has assailed the impugned judgment. Conversely, the complainant Sabir Ali has filed Criminal Petition No. 519 seeking enhancement of the sentence of the respondent-convict from imprisonment for life to the normal penalty of death prescribed under Section 302(b), PPC.

5. We have heard the learned counsel for the parties as well as the learned Deputy Prosecutor General, Punjab, appearing on behalf of the State, and have carefully perused the record, the evidence adduced by the prosecution, and the impugned judgment with their able assistance.

6. At the very outset, we have observed that in his statement recorded under Section 342, Cr.P.C., the petitioner-convict has not denied the occurrence in its entirety. Rather, he has set up a specific plea that he acted in the exercise of the right of private defence of the honour of his paternal niece Mst. Shagufta Rafique, asserting that the deceased had created such circumstances which compelled him to take the extreme step. In order to substantiate this plea, the petitioner-convict examined Mst. Shagufta Rafique as DW-1 in his defence. For facility of reference, the relevant portion of the statement of the petitioner-convict recorded under Section 342, Cr.P.C. is reproduced hereinbelow:-

“I had no intention to kill the deceased nor even dare to think such type of occurrence. I have no criminal record nor even visited the police station ever. It was the deceased who proved me to do this occurrence. I may other family members have great respect in the town. We respect the womenfolk of co-villagers and expect the same from others. The honour of my niece was on stake as the deceased was dragging my niece in a plot to fulfill his evil designs. I, lost control when I saw this episode. I quarrelled with deceased who pulled out knife and tried to attack me but during the fracas I snatched knife and in fury inflicted blows to the deceased. As noble man do in that situation, I did. My religion, culture, society and the law of the land gave me right to protect the honour of my family and the property. If I was not present at the spot and my niece Shagufta would have been raped. I, my family have to suffer the stigma for ever and people tant, this is a family whose woman had been raped and they cannot protect dignity and honour of their woman. I was alone at the spot; my brothers were not present there. It was deceased who deliberately came in that street. Although, he can use the door of house of his uncle which fall on southern side of house of Ishaq. I had no previous motive with deceased. It was deceased who invited this trouble spoiled two families and he is responsible for his death. I appeared

before the police on the day of occurrence voluntarily. Police kept me under detention some days without any legal justification. The occurrence was not witnessed by anyone”.

Mst. Shagufta Rafique aged 17 years while appearing as DW.1 in support of the plea of the petitioner-convict deposed that:-

“On 13.12.2013 at 08.00 AM I was going to Government Girls High School Ikhlaspur, when I came outside my house, Zeshan deceased was standing in the street. He hold me and dragged me towards abandoned land adjacent to my house for fulfilling evil intention. I raised alarm, responding to alarm my uncle Tariq who was present in his house came in the street. After seeing me in the clutches of Zeshan deceased, Tariq started quarrelling with Zeshan deceased. Zeshan deceased pulled a churri from his fold. My uncle Tariq snatched the churri from Zeshan deceased and inflicted churri blows on his person. Zeshan deceased before this occurrence used to tease me even tried to hug me. Zeshan deceased often throw absence pictures on my door. At the place of occurrence, I Zeshan and my uncle Tariq were present none else”.

7. We have thoughtfully considered the defence plea in the light of the statement of the petitioner-convict recorded under Section 342, Cr.P.C. and the deposition of Mst. Shagufta Rafique (DW-1). It is an admitted position that Mst. Shagufta Rafique aged about 17 years is the niece of the petitioner-convict. However, in the peculiar social milieu of our society, it cannot ordinarily be expected of a young girl to falsely level upon herself an allegation touching her modesty and honour merely to save an accused person from penal consequences. Allegations of such nature carry with them a social stigma which no woman would lightly invite upon herself. Likewise, it appears improbable that a maternal uncle would expose his niece to such stigma by fabricating a story involving her honour solely to create a defence. This aspect lends intrinsic assurance to the defence version. The statement of Mst. Shafgufta Rafique fully corroborates the plea taken by the petitioner-convict that the deceased had caught hold of her and was dragging her towards a deserted place with an evil design; that upon her raising alarm, the petitioner reached the spot; that a quarrel ensued; and that during the altercation the deceased took out a *churri*, which was snatched

by the petitioner who, in the heat of passion, inflicted injuries upon him. The defence version, therefore, is not a bare assertion but finds support from the testimony of Mst. Shagufta Rafiq. Further support to the defence stance is also traceable from the investigation conducted in the case. The Investigating Officer, during the course of investigation, opined that co-accused Muhammad Abbas was not present at the time of occurrence at the spot and that co-accused Muhammad Rafique alias Rafi, being unarmed, had not participated in the commission of the offence. On the basis of such findings, both the said co-accused were acquitted by the learned Trial Court. Their acquittal was not assailed by the State or the complainant before any higher forum and has thus attained finality. This circumstance lends corroboration to the defence plea that the occurrence was not a pre-planned attack by multiple assailants but rather an incident confined to the petitioner and the deceased at the spot.

8. Keeping in view the mode and manner of the occurrence as emerging from the statement of the petitioner-convict under Section 342, Cr.P.C. and the testimony of DW-1, we are persuaded to hold that the occurrence took place at the spur of the moment and without any premeditation. The material on record suggests that it was the act of the deceased which triggered the incident, and that the petitioner, in the heat of passion and upon sudden provocation, lost self-control and inflicted injuries which proved fatal. The element of prior concert or calculated design is conspicuously absent. In these circumstances, the case squarely falls within the ambit of Section 302(c), PPC, and not under Section 302(b), PPC.

9. Consequently, Jail Petition No. 338 of 2015 is converted into an appeal and is partly allowed. The conviction and sentence of the appellant-convict under Section 302(b), PPC are set aside. Instead, he is convicted under Section 302(c), PPC and sentenced to undergo rigorous imprisonment for fourteen (14) years. The amount of compensation awarded by the learned Trial Court and the sentence in default thereof shall, however, remain intact. Benefit of Section 382-B Cr.P.C. is extended to the appellant-convict.

Criminal Petition No. 519-L of 2018

10. In view of the conversion of conviction and sentence of the respondent-convict from Section 302(b), PPC to Section 302(c), PPC, the petition seeking enhancement of sentence has been rendered infructuous and is accordingly dismissed.

Judge

Judge

Judge

Islamabad
03.02.2026
NOT APPROVED FOR REPORTING
M.Siraj Afridi SPS